

“offer[ing] to restore” the consideration received and allows “the service of a pleading in an action or proceeding that seeks relief based on rescission [to] be deemed to be such notice [of rescission] or offer [to restore] or both.”

IV. CONCLUSION

Based on the foregoing, defendants Chen and YESI’s demurrer to Plaintiff’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] is SUSTAINED with 10 days’ leave to amend. The Court will prepare the formal Order.

Calendar Lines # 7

Case Name Farmers Insurance Exchange vs Nathaniel Villareal

Case No. 25CV477397

Motion to Compel Production of Documents & Sanctions

I. BACKGROUND

This underinsured motorist case stems from a September 12, 2022, motor-vehicle incident that occurred in Santa Clara County between the plaintiff Nathaniel Villarreal and Omar Gonzalez.

Before this court is the defendant/respondent Farmers Insurance Exchange (“Farmers Insurance”) motion to compel responses to request for production of documents (“RFPD”), set one, numbers 1-19 and sanctions against the plaintiff/claimant Nathaniel Villareal. The motion was filed on February 27, 2026 that was accompanied by a proof of service via electronic service on that same day.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 9, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: Defendant’s motion to compel response to RFPD, set one and sanctions, including the defendant’s notice of motion, memorandum of points and authorities, Declaration of Claudia Lozano and attached Exhibits 1-11 (totaling 72 pages), proof of services, and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section § 2031.310, subdivision a: “On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that . . . [a] statement of compliance with the demand is incomplete[;] . . . [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] . . . [a]n objection in the response is without merit or too general.”

A. TIMELINESS

Code of Civil Procedure section 2031.310, subdivision (c) provides that a motion to compel further responses to requests for production must be brought within forty-five days of service of the verified response, supplemental verified response, or on a date to which the propounding and responding parties have agreed to in writing; otherwise, the propounding party waives the right to compel further responses. (Code Civ. Proc., § 2031.310, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (*i.e.*, it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

“[T]he time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers[.]” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Ibid*).

B. MEET AND CONFER

Code of Civil Procedure section 2031.310(b)(2) requires parties to meet and confer prior to filing a motion to compel. “A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

C. SEPARATE STATEMENT

California Rules of Court, rule 3.1345 (a)(2) explicitly states that “Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.” “A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Cal. Rules of Court, rule 3.1345(c)).

III. ANALYSIS

From November 26, 2023 to February 15, 2024, the defendant granted claimant’s counsel four separate extensions to respond to the form interrogatories. (*Id.* at p. 10-11; Exhibit 2-6). On March 26 2024, defense counsel received a substitution of attorney form stating that the plaintiff retained Bennett M. Cohen as counsel. (*Id.*; Exhibit 7). On April 5, defense counsel’s paralegal reached out to Mr. Cohen regarding the outstanding discovery. (*Id.*; Exhibit 8). On April 24, 2024, defense counsel e-mailed Mr. Cohen regarding the overdue discovery and informed Plaintiff’s counsel that the defense would reserve the discovery that was due on February 29, 2024 and sent a demand for arbitration. (*Id.*; Exhibit 9). Defense counsel’s paralegal sent a follow-up email in mid-May 2024. (*Id.*; Exhibit 8). On July 11, 2024, Plaintiff’s counsel stated he would seek to respond to the discovery within thirty days. (*Id.*, Exhibit 10).

On November 23, 2024, defense counsel reached out to plaintiff’s counsel regarding the overdue discovery, emphasizing that it had been three months since Mr. Cohen stated he would provide responses and demanded responses within ten days on or before December 5, 2024. (*Id.*, at p. 12; Exhibit 11).

On April 15, 2025, defense counsel reached out to plaintiff’s counsel stating it had been eight months since the defense served discovery and had not received responses and would seek a motion to compel. (*Id.*, at p. 12; Exhibit 11). On April 21, plaintiff’s counsel sought a ten day extension, which defense counsel granted until May 1, 2025. (*Id.*). Plaintiff’s counsel requested an extension until May 9, 2025. (*Id.*). On May 16, 2025, defense counsel notified plaintiff’s counsel that he would be filing a motion to compel if no responses were received by the following week. Plaintiff received no responses as of the filing of this motion on February 27, 2026. (*Id.*, at p. 13).

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 9, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

Here, the Court finds the Motion is timely, under Code of Civil Procedure section 2031.310. Defendant has satisfied the meet and confer requirements. Given there was no responses to the request for production, a separate statement is not required. The discovery at issue pertains to Defendant's RFPD, Set One, Nos. 1 – 19 that were propounded on the plaintiff on October 27, 2023. (Declaration of Lozano at p. 10; Exhibit 1). The defendant has granted the plaintiff six separate extensions to respond to the form interrogatories, set one from November 26, 2023 to May 1, 2025. The Court notes the significant lapse in time. No responses were served to date.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Farmers Insurance Exchange seeks sanctions and attorney's fee in the amount of \$585.00 against the plaintiff Nathaniel Villarreal based on plaintiff's failure to provide responses to RFPD. (Declaration of Lozano, p. 13). Farmers Insurance alleges that the Claimant was given almost over a year and a half of time for extensions to respond to discovery, and has still failed to respond. Defense counsel attests to spending four hours on preparing and filing this motion and estimates expending another two hours on preparing a reply brief and attending court. The hourly rate in this matter is \$250.00 and for six hours requested would amount to \$1, 500.00. Defendant's also seek a \$60.00 filing fee. However, defense seeks \$585.00 in total.

The Court notes that no reply brief was filed and there was no opposition to the motion. Given that the plaintiff has failed to provide any response to the RFPD, unopposed motion, and the Court granting the motion to compel, the Court finds that discovery sanctions in the amount of \$585.00 is reasonable.

V. CONCLUSION

Based on the foregoing, the Court orders as follows:

The motion to compel responses to RFPD, set one is GRANTED. The plaintiff is to provide verified responses to RFPD, set one, within twenty (20) days of this hearing date.

The motion for sanctions is GRANTED. The plaintiff is to pay the defendant's attorney's fee and cost in the amount of \$585.00 within twenty (20) days of this hearing date.

The Court will prepare the formal Order.

Calendar Lines # 8-9

Case Name Mariet Zovich vs Thomas Olds et al

Case No. 25CV480445

Motion to Strike (Line # 8) and Demurrer (Line # 9)

Before the court is Defendants Demurrer to portions Plaintiffs' First Amended Complaint (Line # 9) and Defendants' Motion to Strike paragraphs 64 and 82 alleged in Plaintiff's FAC, in addition to the entire prayer for relief on all causes of action (Line # 8). Pursuant to California Rule of Court 3.1308, the court issues its tentative